IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
PRINCIPAL BENCH

ITEM No. 04
(CAA)- 113(PB)/2021

IN THE MATTER OF:
Bhaktideep Sales Pvt Ltd and
Plannear Infra Pvt Ltd ... Applicant/Petitioner

Order under Section 230-232.

Order delivered on 02.12.2021

CORAM:
JUSTICE RAMALINGAM SUDHAKAR
HON'BLE PRESIDENT

SH. HEMANT KUMAR SARANGI
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant : Mr. Rekha Mittal, Practicing Company Secretary
For Promoters : Mr. Swapnil Gupta, and Ms. Surbhi Uniyal, Advs.

ORDER

This is a Second Motion Petition which has been filed under Section 230-232 of the Companies Act, 2013, read with Rule 16 of the Companies (Compromises, Arrangements and Amalgamation) Rules, 2016.

The First Motion order was passed on 18.11.2021, consequent there upon this scheme of Amalgamation has been submitted as Annexure P1 as to the manner in which, the Scheme of Amalgamation has been taken up, subject to order of this Tribunal.

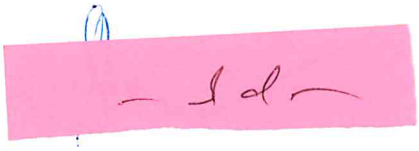
Consequent there upon, as required by the provision of 230-232 of the Companies Act, 2013, read with Rule 16 of the Companies (Compromises, Arrangements and Amalgamation)

Rules, 2016. In respect of prayer (a) notice of the petition be issued to the Statutory Authorities in terms of 230(5) as applicable, the prayer reads as follows:

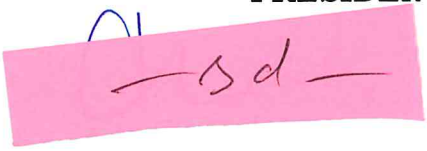
> *"Sanction the Secheme of Amalagamation of Bhakitdeep Sales Private Limited, Chamkila Sales Private Limited and S M Hotel Industries Private Limited with Planear Infra Private Limited as per Annexure P-1 and declare the same to be binding with effect from the Appointed Date on the Petitioner Transferor Companies and the Transferee Company, their Shareholders, Creditors and all concerned without any further act, deed or thing; and"*

Notice of the hearing shall be advertised in the newspapers namely, "Financial Express" (English, Delhi Edition) and "Jansatta" (Hindi, Delhi Edition) within the 15 days' time for the receipt of this order.

The next date of hearing of the Petition shall be on **10.02.2022** for consideration of the approval of the Scheme of Amalgamation as contemplated between the Petitioner Companies.



(RAMALINGAM SUDHAKAR)
PRESIDENT



(HEMANT KUMAR SARANGI)
MEMBER (TECHNICAL)

Deepak - 02.12.2021